

THE RIGHT TO TRAVEL

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⚠️ LEGAL DISCLAIMER

This publication is provided for **educational and informational purposes only**. It does not constitute legal advice, and no attorney-client relationship is created by reading or using this material. The information contained herein reflects publicly available case law, statutes, and legal analysis as of July 2026.

Laws vary by state and are subject to change. The legal landscape surrounding driver's licensing, vehicle operation, and constitutional rights is complex and fact-specific. Before taking any action based on the information in this guide, **consult with a licensed attorney in your jurisdiction**.

The author and publisher make no warranties, express or implied, about the accuracy, completeness, or applicability of this information to any individual's specific circumstances. Driving without a valid license is a criminal offense in all 50 states and may result in fines, vehicle impoundment, imprisonment, civil liability, and other serious consequences.

Nothing in this publication should be construed as encouragement or advice to drive without a license. This guide exists to provide a thorough, accurate account of the constitutional right to travel and how it intersects with motor vehicle regulation — nothing more.

The right to travel is one of the most debated topics in American constitutional law. It sits at the intersection of individual liberty, state sovereignty, public safety, and personal autonomy. Millions of Americans have encountered the question: *"Do I really need a government-issued license to move freely in my own country?"*

The answer, drawn from over 200 years of case law, is nuanced. The constitutional right to travel is real, powerful, and well-established. But it operates within a framework that also grants states the authority to regulate certain activities on public infrastructure — including the operation of motor vehicles.

This guide provides a thorough, source-backed examination of:

- The constitutional origins and judicial history of the right to travel
- The Supreme Court cases that defined its scope
- The critical distinction between *traveling* and *driving* as courts understand them
- Arguments made by proponents of the no-license position — and how courts have responded
- A case-by-case analysis of the most widely cited "no license needed" article on the internet
- What the right actually protects, and where its boundaries lie
- Legal alternatives for those who wish to exercise their right to travel without a driver's license

This is not an advocacy piece for any particular position. It is a factual account of what the law says, grounded in primary sources. Readers are encouraged to examine the cited cases, consult legal counsel, and draw their own conclusions.

Sources of the Right

The right to travel is not explicitly enumerated in the Constitution. Instead, it is **implied** from several constitutional provisions:

Article IV, Section 2 — Privileges and Immunities Clause:

"The Citizens of each State shall be entitled to all Privileges and Immunities of Citizens in the several States."

U.S. Const. art. IV, § 2

This clause, inherited from the Articles of Confederation, ensures that citizens of one state are not treated as foreigners in another. The right to move between states — and to be received as a fellow citizen — is embedded in its language.

14th Amendment — Privileges or Immunities Clause:

"No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States."

U.S. Const. amend. XIV, § 1

Ratified after the Civil War, the 14th Amendment extended protections against state infringement to all citizens. The Supreme Court has held that this clause protects the right to become a permanent resident of any state with equal treatment to native-born citizens.

Why It Wasn't Explicitly Listed

During the Constitutional Convention of 1787, the framers considered the right to travel so fundamental that they believed explicit enumeration was unnecessary. The Articles of Confederation (Article 4) had already recognized it. As the Supreme Court later noted, the right was "thought to be so fundamental during the drafting of the Constitution as to not need explicit enumeration."

Additional constitutional support comes from:

- **The First Amendment** — Freedom of association is closely linked to freedom of movement
- **The Commerce Clause** (Art. I, § 8) — Interstate commerce includes the movement of persons
- **The 10th Amendment** — Reserves police powers to states, including highway regulation

KEY SUPREME COURT CASES



Corfield v. Coryell, 6 Fed. Cas. 546 (1823)

The foundational case. Justice Bushrod Washington held that the Privileges and Immunities Clause protected fundamental rights including "the right of transit." This was the first judicial recognition of freedom of movement as a constitutional right.

Crandall v. Nevada, 73 U.S. 35 (1868)

Nevada imposed a \$1 tax on every person leaving the state by rail or stagecoach. The Supreme Court struck it down, declaring the right to travel **fundamental**.

"He has the right to come to the seat of the government... this right is in its nature independent of the will of any State over whose soil he must pass in the exercise of it."

Crandall v. Nevada, 73 U.S. 35 (1868)

Paul v. Virginia, 75 U.S. 168 (1869)

Defined freedom of movement as the **"right of free ingress into other States, and egress from them."**

United States v. Wheeler, 254 U.S. 281 (1920)

The first case to locate the right to travel specifically within the Privileges and Immunities Clause, elevating it to the status of an **absolutely fundamental** right.

United States v. Guest, 383 U.S. 745 (1966)

Overruled the earlier holding that only states could protect the right to travel. The federal government now had authority to protect citizens against state infringement.

Shapiro v. Thompson, 394 U.S. 618 (1969)

The landmark case. The Court invalidated state durational residency requirements for public assistance, explicitly recognizing the right to travel as a **fundamental constitutional right**.

The right to travel is "firmly embedded in our jurisprudence" and is "a fundamental constitutional right."

Shapiro v. Thompson, 394 U.S. 618 (1969)

Saenz v. Roe, 526 U.S. 489 (1999)

The most comprehensive modern treatment. Justice Stevens identified three distinct components (detailed in Section II). This case remains the definitive framework.

THE THREE COMPONENTS OF THE RIGHT

II

In **Saenz v. Roe (1999)**, Justice Stevens identified three separate and distinct aspects of the constitutional right to travel:

Component 1: The Right to Enter and Leave

"The right of a citizen of the United States to enter one State and leave another."
Saenz v. Roe, 526 U.S. 489 (1999)

The most ancient component, traceable to the Articles of Confederation (1781):

- ✓ The right to cross state lines without interference
- ✓ The right not to be taxed for leaving a state (Crandall)
- ✓ Freedom from unreasonable restrictions on departure or entry

Component 2: The Right to Be Treated as a Welcome Visitor

"The right to be treated as a welcome visitor rather than a hostile stranger."
Saenz v. Roe, citing Article IV, § 2

Protected by the Privileges and Immunities Clause of Article IV. States cannot impose discriminatory burdens on interstate travelers.

Component 3: The Right to Equal Treatment as a New Resident

"The right to be treated equally to native-born citizens" — for those who choose to become permanent residents.
Saenz v. Roe, citing the 14th Amendment

Once a citizen establishes residency in a new state, they are entitled to the same rights and benefits as those born there.

Summary Table

COMPONENT	PROTECTION	SOURCE	KEY CASE
1. Enter & Leave	Move between states freely	Art. IV + 14th Amd.	Crandall (1868)
2. Welcome Visitor	Equal treatment while visiting	Art. IV, § 2	Corfield (1823)
3. New Resident	Equal treatment as permanent resident	14th Amd., § 1	Saenz (1999)

What the Courts Have Actually Said

The question: *Does the constitutional right to travel include the right to operate a motor vehicle on public roads without a state-issued driver's license?*

The Supreme Court answered this definitively in 1915.

Hendrick v. Maryland, 235 U.S. 610 (1915)

This is the single most important case for this topic.

Facts: Hendrick was convicted under Maryland's motor vehicle statute for operating a vehicle without a state-issued license. He appealed, arguing the license requirement violated his constitutional freedom of movement.

SUPREME COURT HOLDING — UNANIMOUS

"In the absence of national legislation covering the subject, a state may rightfully prescribe uniform regulations necessary for public safety and order in respect to the operation upon its highways of all motor vehicles — **those moving in interstate commerce as well as others.**"

The Court found "**no solid foundation**" for the argument that *Crandall v. Nevada* implied a right to use any particular mode of travel, such as driving an automobile.

→ **This case holds: The right to travel does NOT include a right to drive without a license.**

Why This Case Is Decisive

- **Unanimous decision** — no dissent, no ambiguity
- **Directly addressed** the right-to-travel defense against license requirements
- **Applied to interstate commerce** — even vehicles crossing state lines need state licenses
- **Has never been overruled** — remains good law in 2026

The "Driving vs. Traveling" Semantic Argument

Some claim "driving" is commercial while "traveling" is personal and protected. **Rejected by every court that has considered it.** State vehicle codes define "drive" as "to operate or be in actual physical control of a motor vehicle" — with no commercial/personal distinction.

TRUE BUT IRRELEVANT

Argument 1: "The right to travel is a fundamental right."

The right IS fundamental. But courts hold it does not extend to motor vehicle operation. You can exercise the right by walking, cycling, bus, train, or airplane — all without a driver's license.

TRUE BUT IRRELEVANT

Argument 2: "The Constitution doesn't mention driver's licenses."

Correct — and the 10th Amendment reserves police power to the states. The Constitution's silence is not a prohibition. Vehicle regulation falls squarely within state police power.

REJECTED BY COURTS

Argument 3: "A license fee is a tax, which Crandall prohibits."

Crandall prohibited taxing people for *leaving a state*. A driver's license fee is a *regulatory fee* for operating a dangerous machine on public infrastructure. Courts distinguish between a travel tax and a regulatory fee.

REJECTED BY EVERY COURT

Argument 4: "Only commercial drivers need licenses."

State vehicle codes apply to all operators. The Uniform Vehicle Code defines "operator" as "every person who drives or is in actual physical control of a motor vehicle" — no commercial/personal distinction.

REJECTED — NO LEGAL BASIS

Argument 5: "The DMV is a corporation and has no authority."

State agencies derive authority from state legislatures through enabling statutes. Corporate structure is irrelevant. Dismissed as frivolous in numerous cases.

REJECTED — STATUTORY DEFINITIONS APPLY

Argument 6: "I'm traveling, not driving."

Courts apply statutory definitions, not semantic characterizations. Operating a motor vehicle on public roads = driving, regardless of what you call it.

THE WE ARE CHANGE ARTICLE



Case-by-Case Analysis of the Most Cited "No License Needed" Document

The article "U.S. Supreme Court Says No License Necessary to Drive Automobile on Public Highways/Streets" (published on WeAreChange.org and attributed to Jeffrey Phillips via SomeNextLevelShit.com) is the single most widely circulated document in the no-license community. It compiles dozens of case quotes to support its thesis.

After examining every case cited, here is what the article gets right, what it gets wrong, and why none of its citations supersede *Hendrick v. Maryland*.

The Core Problem: Two Different Questions

The article conflates two distinct legal questions:

Question 1: TRUE

"Do you have the right to use public highways?"

Yes. Everyone agrees. The cases cited establish this.

Question 2: ALSO TRUE

"Do you need a license to operate a motor vehicle on them?"

Yes. *Hendrick* says so. The cited cases don't address this.

Thompson v. Smith, 154 SE 579 (1930)

The article's most-cited case. It quotes: *"The right of a citizen to travel upon the public highways... is not a mere privilege which may be permitted or prohibited at will, but a common right."*

MISCHARACTERIZED

What it actually held: The case was about a Virginia police chief's authority to issue permits. The court **UPHELD the licensing requirement** while acknowledging the right exists but is subject to reasonable regulation. The article strips the context and presents the "right" language while hiding that the licensing requirement survived judicial review.

People v. White, 97 Cal.App.3d 141 (1979)

Quote: *"the right of the citizen to drive... is a fundamental constitutional right"*

MISCHARACTERIZED

What it actually held: A DUE PROCESS case about license **suspension procedures** — whether the state must give notice and a hearing before revoking a license. The court said yes. It did NOT say you can drive without one. It assumed a license was required and addressed what process is due when the state takes it away.

CASE-BY-CASE ANALYSIS (CONT.)



Berberian v. Lussier (1958)

Quote: *"the RIGHT to use an automobile on the public highways partakes of the nature of a liberty"*

MISCHARACTERIZED

What it actually held: Another DUE PROCESS case — automobile use is a "liberty" interest protected by the 14th Amendment's Due Process Clause. The context was license revocation. The court said driving involves a liberty interest, therefore you're entitled to due process before the state revokes your license. **It assumes you need a license.**

Adams v. City of Pocatello (1966)

Quote: *"right of liberty, the enjoyment of which is protected by the guarantees of the federal and state constitutions"*

MISCHARACTERIZED

What it actually held: Same pattern — due process for license revocation, not an argument against licensing.

Caneisha Mills v. D.C. (2009)

NOT SUPREME COURT

A lower court case with no precedential authority over Hendrick. Cannot supersede a unanimous Supreme Court decision.

Shuttlesworth v. Birmingham, 394 U.S. 147 (1969)

This is the one Supreme Court case the article cites that IS about licensing. But it's about **parade permits** and **First Amendment rights** — not driver's licenses. The Court held that an unconstitutional licensing scheme (requiring a permit to protest) could be ignored.

WRONG CONTEXT

This case has zero to do with motor vehicles. The article applies a First Amendment protest case to driver's licensing. No court has ever extended Shuttlesworth to driver's license requirements.

18 U.S.C. § 31 — The "Commercial" Argument

The article quotes the federal definition: "motor vehicle means... used for commercial purposes."

INAPPLICABLE

Accurate for the *federal criminal code*. But **state vehicle codes** — which govern driver licensing — define "motor vehicle" far more broadly, with no commercial/personal distinction. Federal definitions don't control state licensing

law.

Wingfield v. Fielder, 2d Ca. 3d 213 (1972)

Quote: *"when merely traveling without compensation or profit, outside of business enterprise or adventure with the corporate state, no license is required"*

MISCHARACTERIZED

What it actually held: This case was about whether a state could require a license to practice a particular profession (not driving). The "traveling" language refers to a person's right to move about freely without needing a professional license — it has nothing to do with motor vehicle operation.

The Remaining Cases

Campbell v. Walker, Simeone v. Lindsay, House v. Cramer, Brinkman v. Pacholike, Indiana Springs Co. v. Brown, Schlesinger v. City of Atlanta, Liebrecht v. Crandall, Chicago Motor Coach v. Chicago, Ex Parte Dickey, People v. Nothaus — these are early 20th-century state court cases establishing that **automobiles have equal rights to use highways as other vehicles** (horses, wagons, bicycles). They're about equal access, not about whether a license is required.

THE SELECTIVE QUOTATION PROBLEM

The We Are Change article exhibits a consistent pattern:

- **Step 1:** Find a case that says "the right to travel is fundamental" (true)
- **Step 2:** Present that quote as if it addresses driver licensing (it doesn't)
- **Step 3:** Omit the part of the case where the court upholds the licensing requirement or addresses a completely different issue

In almost every instance, the case was about **due process** (what happens when the state revokes your license) or **equal access** (automobiles vs. horses) — not about whether licensing is constitutional.

Four Reasons None Override Hendrick

#	REASON	EXPLANATION
1	Hierarchy of Authority	Hendrick is a unanimous U.S. Supreme Court case. Most of the article's citations are state trial/appellate courts. Supreme Court precedent controls.
2	Wrong Question	Not a single case in the article directly addresses and rules on "is a driver's license required?" Hendrick does. And it says yes.
3	Selective Quotation	Quotes are stripped of context. The "right to travel" language supports the right; the holdings support licensing.
4	No Post-1915 Challenge	If any cited case superseded Hendrick, the Supreme Court would have said so. It never has. In 111 years, no court has reversed or questioned Hendrick's holding on this point.

The Pattern Across All "No License" Arguments

Whether from the We Are Change article, sovereign citizen literature, or individual court filings, the pattern is the same:

1. Real constitutional right → correctly identified
2. Real case quotes → accurately quoted (usually)
3. Wrong conclusion → applied to a question the cases don't address
4. Hendrick → ignored or dismissed without analysis

Hendrick v. Maryland has never been questioned, distinguished, or weakened by any subsequent case on the specific holding that states may require driver's licenses. It remains the controlling authority on this question.

✓ What IS Protected

- ✓ Moving between states without unreasonable interference
- ✓ Not being taxed for leaving a state
- ✓ Being treated as a welcome visitor in other states
- ✓ Establishing residency with equal treatment
- ✓ Freedom from unreasonable durational residency requirements
- ✓ Freedom from laws that unreasonably burden interstate movement
- ✓ Federal protection against state infringement (post-Guest)
- ✓ Protection linked to freedom of association and expression

✗ What is NOT Protected

- ✗ Operating a motor vehicle without a license
- ✗ Using public roads without vehicle registration
- ✗ Operating without required insurance
- ✗ Refusing to comply with traffic laws
- ✗ Using highways without meeting regulatory requirements
- ✗ Any particular mode of travel (Hendrick)
- ✗ Absolute freedom from all state regulation while mobile
- ✗ Exemption from police power of the state

⚠ WHAT HAPPENS IF YOU DRIVE WITHOUT A LICENSE

- **Criminal charges** — Misdemeanor in all 50 states
- **Fines** — \$100 to \$1,000+ depending on jurisdiction
- **Jail time** — Possible, especially for repeat offenses
- **Vehicle impoundment** — Seized at the traffic stop
- **Civil liability** — No insurance coverage if you cause an accident
- **Permanent criminal record**
- **Immigration consequences** — For non-citizens

Has the "Right to Travel" Defense Ever Worked?

No. There is no reported case in which a defendant successfully used the constitutional right to travel as a defense against driving without a license. Courts treat this argument as legally insufficient, citing *Hendrick v. Maryland* and its progeny.

What Happens in Traffic Court

1. The judge explains that the right to travel does not apply to driver's licensing
2. If the defendant persists, the judge may hold them in contempt
3. The original fine is imposed, often with additional contempt penalties
4. The defendant gains no legal advantage and faces additional costs

METHOD	LICENSE NEEDED?	NOTES
Walking	No	Always legal; fundamental right of movement
Cycling	No	Legal everywhere; some states require e-bike registration
Horseback	No	Legal in most jurisdictions
Public Transit	No	Buses, trains, subways, ferries
Rideshare / Taxi	No (passenger)	Someone else drives
Airline (passenger)	No	49 U.S.C. § 40103: public right of transit through airspace
Rail (Amtrak)	No	Fully legal without any operator's license

THE FEDERAL AIR TRAVEL RIGHT

49 U.S.C. § 40103: *"A citizen of the United States has a public right of transit through the navigable airspace."* One of the few places where the right to travel is codified in federal statute — and it applies to transit as a passenger, not to operating aircraft.

MASTER CASE REFERENCE

CASE	YEAR	COURT	HOLDING
Corfield v. Coryell	1823	Circuit	First recognition of freedom of movement as fundamental
Crandall v. Nevada	1868	SCOTUS	States cannot tax people for leaving; right is fundamental
Paul v. Virginia	1869	SCOTUS	"Free ingress into other States, and egress from them"
Slaughter-House Cases	1873	SCOTUS	14th Amd. protects right to become resident
★ Hendrick v. Maryland	1915	SCOTUS	States CAN require licenses; right to travel ≠ right to drive
U.S. v. Wheeler	1920	SCOTUS	Right to travel in Privileges & Immunities Clause; fundamental
Edwards v. California	1941	SCOTUS	Struck down law prohibiting bringing indigent persons into state
U.S. v. Guest	1966	SCOTUS	Federal govt can protect right to travel against states
★ Shapiro v. Thompson	1969	SCOTUS	Right to travel is fundamental constitutional right
Dunn v. Blumstein	1972	SCOTUS	Struck down 1-year residency for voting
Memorial Hospital v. Maricopa	1974	SCOTUS	Struck down 1-year wait for medical care
Baldwin v. Montana	1978	SCOTUS	Upheld higher hunting/fishing fees for non-residents
★ Saenz v. Roe	1999	SCOTUS	Three-component framework; definitive modern standard

49 U.S.C. § 40103 — Airspace

"A citizen of the United States has a public right of transit through the navigable airspace."

49 U.S.C. § 40103(b)(1)

18 U.S.C. § 31 — Federal Motor Vehicle Definitions

Defines "motor vehicle" broadly for federal criminal law. No private-use exception.

The Uniform Vehicle Code (UVC)

All 50 states adopted some version. Key definitions:

- **"Motor vehicle"** — Every self-propelled vehicle
- **"Drive"** — To operate or be in actual physical control
- **"Operator"** — Every person who drives or controls a motor vehicle
- **"Highway"** — The entire width between boundary lines of any public way

No commercial/personal distinction in any definition.

CONCLUSION

The constitutional right to travel is one of the most well-established rights in American law. Over two centuries of case law confirm that the freedom to move from place to place, and from state to state, is fundamental to American citizenship.

However, the right to travel and the privilege of operating a motor vehicle on public roads are legally distinct. The Supreme Court addressed this in **Hendrick v. Maryland (1915)** and held, unanimously, that states have the authority to require driver's licenses. This has never been questioned, modified, or overruled.

The arguments that a driver's license is unnecessary — based on the right to travel, the commercial nature of "driving," or the semantic distinction between "driving" and "traveling" — have been raised in courts across the country and have uniformly been rejected.

The widely circulated We Are Change article compiles real quotes from real cases, but presents them in a way that implies they support a conclusion they don't. The cases establish that driving involves a liberty interest, that the right to use highways is fundamental, and that due process applies to license revocation. None say you can drive without a license.

KEY TAKEAWAYS

- The right to travel is real, constitutional, and powerful
- It protects interstate movement, not motor vehicle operation
- Hendrick v. Maryland (1915) directly holds states may require licenses
- No court has ever upheld the "right to travel" defense against license charges
- The We Are Change article's citations are real cases, mischaracterized
- Walking, cycling, public transit, and ridesharing are all legal without a license

"He has the right to come to the seat of the government... this right is in its nature independent of the will of any State over whose soil he must pass in the exercise of it."

— Justice Samuel Miller, *Crandall v. Nevada* (1868)

SOURCES & FURTHER READING

Supreme Court Cases

1. *Corfield v. Coryell*, 6 Fed. Cas. 546 (C.C.E.D. Pa. 1823)
2. *Crandall v. Nevada*, 73 U.S. 35 (1868)
3. *Paul v. Virginia*, 75 U.S. 168 (1869)
4. *Slaughter-House Cases*, 83 U.S. 36 (1873)
5. *Hendrick v. Maryland*, 235 U.S. 610 (1915)
6. *United States v. Wheeler*, 254 U.S. 281 (1920)
7. *Edwards v. California*, 314 U.S. 160 (1941)
8. *United States v. Guest*, 383 U.S. 745 (1966)
9. *Shapiro v. Thompson*, 394 U.S. 618 (1969)
10. *Shuttlesworth v. Birmingham*, 394 U.S. 147 (1969)
11. *Dunn v. Blumstein*, 405 U.S. 330 (1972)
12. *Memorial Hospital v. Maricopa County*, 415 U.S. 250 (1974)
13. *Baldwin v. Fish and Game Commission*, 436 U.S. 371 (1978)
14. *Attorney General v. Soto-Lopez*, 476 U.S. 898 (1986)
15. *Sáenz v. Roe*, 526 U.S. 489 (1999)

State Cases Cited in We Are Change Article

- *Thompson v. Smith*, 154 SE 579 (Va. 1930)
- *People v. White*, 97 Cal.App.3d 141 (1979)
- *Berberian v. Lussier*, 139 A.2d 869 (R.I. 1958)
- *Adams v. City of Pocatello*, 416 P.2d 46 (Idaho 1966)
- *People v. Horton*, 14 Cal.App.3d 667 (1971)
- *Wingfield v. Fielder*, 2d Ca. 3d 213 (Cal. 1972)
- *Caneisha Mills v. D.C.* (2009)

Federal Statutes

- U.S. Const. art. IV, § 2
- U.S. Const. amend. XIV, § 1
- 49 U.S.C. § 40103
- 18 U.S.C. § 31

Further Reading

- Uniform Vehicle Code (National Committee on Uniform Traffic Control Devices)
- Wikipedia: "Freedom of movement under United States law"
- WeAreChange.org: "U.S. Supreme Court Says No License Necessary..." (analyzed in Section V)
- Cornell Law Institute (law.cornell.edu)

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